

HOUSE No. 478**The Commonwealth of Massachusetts**

PRESENTED BY:

Jonathan D. Zlotnik and Kimberly N. Ferguson*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the sale of malt beverages produced by a pub brewery.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jonathan D. Zlotnik</i>	<i>2nd Worcester</i>	<i>1/17/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/17/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>1/24/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>2/10/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>2/10/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>2/19/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/4/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>3/5/2025</i>
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>3/20/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>3/20/2025</i>
<i>Adrienne Pusateri Ramos</i>	<i>14th Essex</i>	<i>3/20/2025</i>
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>4/2/2025</i>
<i>Thomas W. Moakley</i>	<i>Barnstable, Dukes and Nantucket</i>	<i>4/5/2025</i>
<i>Richard G. Wells, Jr.</i>	<i>7th Norfolk</i>	<i>4/10/2025</i>

HOUSE No. 478

By Representatives Zlotnik of Gardner and Ferguson of Holden, a petition (accompanied by bill, House, No. 478) of Jonathan D. Zlotnik, Kimberly N. Ferguson and others relative to the sale of malt beverages produced by a pub brewery. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the sale of malt beverages produced by a pub brewery.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 19D of Chapter 138 of the General Laws, as appearing in the 2018
2 Official Edition, is hereby amended by striking out subsection (g) and inserting in place thereof
3 the following:

4 (g) A pub brewer may sell malt beverages or malt beverage products produced by the pub
5 brewery or produced for the pub brewery and sold under the pub brewery name:

6 (1) at wholesale to any person holding a valid wholesalers' and importers' license under
7 section 18;

8 (2) at wholesale in kegs, casks, barrels or bottles to any person holding a license to sell
9 under sections 12, 13 or 14, and, for the sole purpose of resale in containers in which the malt
10 beverage was delivered, to any person holding a license to sell under section 15; provided, that
11 the total annual sales to sections 12, 13, 14, and 15 licensees shall not exceed 50,000 gallons;

12 (3) at wholesale to churches and religious societies, educational institutions, incorporated
13 hospitals, homes for the aged, manufactures of food products and manufacturers of drugs and
14 chemicals as authorized by and subject to the provisions of section 28;

15 (4) at retail by the bottle to consumers for consumption off premises;

16 (5) at wholesale to any person in any state or territory in which the importation and sale
17 of malt beverages is not prohibited by law; and

18 (6) at wholesale to any person in a foreign country.